

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 22, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Councilman White recognized members of Cub Scout Pack #124 and Boy Scout Troup #102 who were present to observe government in action.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Shanor, and pursuant to support received by Mr. Luna and Mr. Case, Agenda Item #13 was removed from the Consent Agenda. Mr. Shanor declared a conflict of interest (business affiliation with agenda item #11) and vacated council chambers. Mr. Luna moved to approve remaining Consent Agenda items, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. Following announcement of the vote, Mr. Shanor returned to Council chambers.

[CA] Minutes from Regular Meeting of the Governing Body on April 8, 2019. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

Mayor Orr opened a public hearing for the City of Cheyenne’s Annual Action Plan Fiscal Year 2019 prepared by the Cheyenne Housing and Community Development Office. Deanne Widauf, Housing and Community Development, provided a brief overview of the history and purpose of the Community Development Block Grant program, noting the proposed plan is consistent with the 5-year Comprehensive Consolidated Plan developed in 2015, and stated the anticipated allocation funding amount is \$433,947.00. Ms. Widauf explained the Tier system being utilized and reviewed information on the grant application process; public notifications and opportunities for input; role of the Advisory Council in reviewing and recommending projects to be funded and explained the projects that are being proposed. She explained Housing & Community Development is anticipating \$85,000.00 in recaptured funding. There being no further comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 3rd READING – Amending Chapter 10.56, Handicapped Parking Spaces, within Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. (#4269)

ORDINANCE – 1st READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule – referred to Finance Committee. (Sponsor – Mr. White)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County CB Community Business to CB Community Business for all of FW Subdivision, Laramie County, Wyoming (located northeast of the intersection of College Drive and Southwest Drive) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Certifying that the Governing Body of the City of Cheyenne supports the application of the Town of Burns to be submitted to the State Loan and Investment Board by the Board of Commissioners of Laramie County for 2015-2016 Countywide Consensus Block Grant funds in the amount of \$18,739.00 to replace the Community Center roof-top heating and air conditioning unit. Motion (per Consent Agenda) carried. (#5988)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Christensen Park, situated in a portion of the SW¼ NE¼, Section 36, Township 14 North, Range 67 West of the Sixth Principal Meridian, Cheyenne, Laramie County, Wyoming (located at the southwest corner of Talbot Court and Cribbon Avenue). Dr. Rinne moved to adopt, seconded by Mr. Shanor. Dr. Rinne explained there were two conditions recommended that include: Provide required proof of ownership and provide a written access agreement with the City. Dr. Rinne moved to postpone to May 13, 2019, seconded by Mr. Roybal. Support for postponement was voiced by members of the governing body and it was expressed that there is an administrative need to fulfill necessary requirements, such as property ownership, prior to seeking governing body approval. Motion to postpone carried. Voting “yes” – all members of the governing body.

RESOLUTION – Calling for an ADA Compliance Evaluation and Transition Plan for the City of Cheyenne Municipal Building. Patti Riesland, Mayor’s Council for People with Disabilities, spoke in favor of the resolution. Reporting for Finance Committee, Mr. Luna moved to adopt, seconded by Laybourn. Upon inquiry regarding funding, Eric Fountain, Chief of Staff, advised currently a funding source has not been identified and reported the purpose of the resolution is to identify ADA shortcomings and develop a compliance plan for the future. He explained this approach has been taken with certain Community Recreation and Events facilities, the Municipal Court and the Public Safety Center currently meet ADA compliance requirements, total cost for ADA updates has not yet been established and the City has not been contacted by the Department of Justice (DOJ) as of yet. Mr. Fountain added that a timeline hasn’t been clearly defined and that once a complaint is received by the DOJ an analysis will be initiated regarding federal requirements which will require a compliance timeline. Concern was expressed related to

status of Municipal Building ADA compliance including existing barriers involving access for people with disabilities. It was suggested the Specific Purpose Sales and Use Tax be considered as a funding source. Further discussion included current compliance process being complaint driven, funding source options and deficiencies in the building including the HVAC system and modern infrastructure issues. Support was voiced relating to the resolution concept and a proactive approach to meet compliance. Mr. Shanor moved to lay the main motion on the table, seconded by Mr. Case. Mr. Laybourn raised a point of order related to the motion and process requesting clarification. Mayor Orr advised 5th Penny Sales Tax is referred to as a capital improvement tax in city code. Alessandra McCoy Fakelman, Assistant City Attorney, upon inquiry, explained a motion to lay on the table is an acceptable and proper motion according to Robert's Rules of Order. It was advised the motion is not debatable or amendable. Motion to lay on the table failed (tie vote). Voting "yes" – Mr. Case, Mr. Cook, Mr. Luna, Dr. Rinne and Mr. Shanor. Voting "no" – Mr. Esquibel, Mr. Laybourn, Mayor Orr, Mr. Roybal and Mr. White. Mr. Fountain provided information on the following upon inquiry: it is his understanding ADA grants have been unsuccessful in the past and there have not been any recent applications submitted, compliance efforts could be addressed one issue at a time, funding needs would be identified once the study has been completed and noted the rule of thumb is compliance updates cost 10% of the price of a building remodel. Jason Sanchez, Community Recreation and Events Deputy Director, reported a 2012 analysis was conducted in an effort to be proactive and identify areas of non-compliance for Community Recreation and Events facilities. He explained the method of addressing the non-compliant areas, stating corrections are made annually in conjunction with other improvements in an on-going effort to become closer to being compliant. Upon inquiry, Mr. Sanchez advised cost estimates are done as each improvement is addressed. Comments were made related to understanding federal requirements and timeframes, the need for addressing federal requirements, fiscal responsibilities and a proactive approach. Vicki Nemecek, Director of Public Works, explained upon inquiry, that previous attempts to acquire Specific Purpose Sales and Use Tax (6th Penny) funding were unsuccessful regarding renovation of the Municipal Building during the last two 6th Penny ballots. Motion failed (tie vote). Voting "yes" – Mr. Esquibel, Mr. Laybourn, Mayor Orr, Mr. Roybal and Mr. White. Voting "no" – Mr. Case, Mr. Cook, Mr. Luna, Dr. Rinne and Mr. Shanor.

[CA] RESOLUTION – Adopting the City of Cheyenne Annual Action Plan 2019 prepared by the Cheyenne Housing and Community Development Office – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the submission of an application to the Wyoming Business Council, Business Ready Community Program, for a \$1,500,000.00 Community Readiness Grant for the Happy Jack Road/F.E. Warren Air Force Base Enhanced Use Lease Infrastructure Project – referred to Finance Committee.

Preliminary Plat for Harmony Valley, 1st Filing, a plat of a portion of the S½ of Section 7 and the SE¼NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne Laramie County, Wyoming (located north of and adjacent to W. College Dr., west of Walterscheid Blvd.). Holli Welch, Woodhouse, Roden and Nethercott LLC, representing an adjacent landowner, advised area landowners have concerns relating to access, noting access has been changed once prior to the

proposed development and advised the development shouldn't be problematic as long as access doesn't change. Kelly Hafner, CivilWorx, LLC, agent for the applicant, reported development plans include maintaining rights-of-way and granting access easements on current property on the final plat. Dr. Rinne moved to acknowledge the Planning Commission's recommendation to approve with staff conditions #1-14, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body.

[CA] Contract between the City of Cheyenne and Goat Green, LLC, Wellington, Colorado, for vegetation management along Dry Creek and Crow Creek (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (in the amount of \$100,000.00). (#6980)

[CA] Professional Services Agreement between the City of Cheyenne and Plan One / Architects, Cheyenne, Wyoming, for City Municipality Re-Roofing Services for the Aquatic Center, Fleet Maintenance Facility and Parks Maintenance Shop (Capital Improvement Plan (CIP) funding). Motion (per Consent Agenda) carried (amount not to exceed \$50,155.00). (#6981)

[CA] Memorandum of Understanding between the City of Cheyenne and Cheyenne Frontier Days, Inc., for the use of city-owned land and buildings for parking, camping, and other activities during the 2019 Cheyenne Frontier Days celebration. Motion (per Consent Agenda) carried. (#6982)

[CA] Memorandum of Understanding between the City of Cheyenne Police Department and the Laramie County Sheriff's Department for EOD, SWAT and CNU Operations and law enforcement extraterritorial assistance and activities. Motion (per Consent Agenda) carried. (#6983)

[CA] Agreement between the City of Cheyenne and Josh Cossitt to provide tennis services and instruction at City-owned tennis facilities (revenue to City) – referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County School District #1 to provide transportation services for the Recreation Division Summer Rec Camp Program – referred to Finance Committee.

[CA] Contract Modification #2 to Contract No. 6932 between the City of Cheyenne and Asbestos & Technical Services, Cheyenne, Wyoming, for asbestos abatement services for 2247 East 19th Street (2015-2018 1% Sales Tax funding). Motion (per Consent Agenda) carried (amount not to exceed \$3,200.00). (#6932)

[CA] Renewal of Contract #6837 between the City of Cheyenne and Delta Dental for group dental benefits for City employees – referred to Finance Committee.

[CA] Contract Modification #1 to Contract No. 6924 between the City of Cheyenne and TC Solutions, LLC, Cheyenne, WY, for Owner's Representative Services for the New Municipal Court (1% Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-19-19 for furnishing bituminous asphalt hot mix, tack oil and cold mix on an annual basis (2015-2018 1% Sales Tax funding). Motion (per Consent Agenda) carried (accept bid from JTL Group Inc. d/b/a Knife River, Cheyenne, WY, in an amount not to exceed \$284,265.00). Motion (per Consent Agenda) carried.

[CA] Consideration to purchase two Lifepak defibrillator devices for the Cheyenne Fire and Rescue Department (General fund) – referred to Finance Committee.

Appointments of Brandon VanTassell to the Fire Code Board of Appeals and Eric Prior to the Housing and Community Development Advisory Council. Mr. Luna moved to approve, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments).

Reappointment of Nicholas A. Zahner to the International Fire Code Board of Appeals. Mr. Luna moved to approve, seconded by Mr. Shanor. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments).

Announcement was made of a Public Hearing to be held May 13, 2019, at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, to receive public comment regarding the intent of the City of Cheyenne to submit an application for funding to the Wyoming Business Council’s Business Ready Community, Community Readiness Grant Program, to assist in funding the F.E. Warren Enhanced Use Lease Infrastructure Project.

Announcement was made of a Public Hearing to be held May 13, 2019, at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, for a social club liquor license application filed with the City Clerk’s office for Mary Godfrey Playhouse, 2706 E. Pershing Blvd., Cheyenne, WY.

Announcement was made of a Public Hearing to be held May 13, 2019, at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, for a restaurant liquor license application filed with the City Clerk’s office for Adeli, LLC d/b/a Railyard Café – Coffee Haus & Eatery, 1620 E. Pershing Blvd., Cheyenne, WY.

Under other business:

Rocky Bolin, Knights of Pythias Lodge, provided Lodge formation and location history which is located near the property of the new Municipal Courthouse project. He expressed concern related to losing access to their kitchen windows which are on the east side of the building during construction of the project and provided information regarding contact he has had with the project architect and manager. Ben Hornak, TC Solutions, Project Manager, expressed appreciation to the Knight’s of Pythias for their accommodation during the project and reported there are fire codes relating to separation between the two buildings that will need to be complied with. A ruling will be requested from the City Building Official regarding what is required for a fire separation wall.

Comments were made related to assisting in other ways to provide natural lighting in the building that houses the Lodge.

Joe Ramirez, Chair of Wyoming Alliance Non-Partisan Group, provided a report related to community relations and law enforcement. Mr. Ramirez asked for feedback from the Governing Body and advised the group has worked with Police Chief Brian Kozak.

Jeff Geyer, Laramie County Conservation District, and Dena Egenhoff, BOPU, gave a presentation on the Crow Creek Revival stream restoration project stating the purpose is to promote, enhance, restore and revitalize the ecological values and functions of Crow Creek. The presentation included information on: Creek history and pattern, realignment of Crow Creek, details of project phases and goals, project funding and grants received, importance of public access and water quality and current and prior master plans. Ms. Egenhoff stated a community Crow Creek clean-up day is scheduled for May 11, 2019. Further information was provided related to Crow Creek history, a 1993 master plan and how the project is related to an enhanced use lease resolution and public hearing that will be held on May 13, 2019. Support for the project was expressed and comments were made related to the relationship between Crow Creek and the Greenway system. It was noted that a Memorandum of Understanding was approved two years ago related to the project.

John Moore, Wyoming Goat Farm, provided information relating to his company and desire to be considered for the goat grazing services contract which was approved earlier on the agenda. Amy Allen, City Engineer, advised the contract was awarded as a sole source project with all advertising requirements having been met. There was an option to discuss the contract at the Finance Committee meeting held on April 15, 2019. Ms. Allen explained the contract will be reviewed again next year.

Mr. Esquibel noted that at the April 8, 2019 City Council meeting, the motion to approve Resolution #5987 proclaiming the two-block radius around the City's east parking lot at 17th Street and Warren Avenue as Cheyenne's Downtown Restaurant District was adopted. Mr. Esquibel, advising he had voted on the prevailing side, and pursuant to City Code Chapter 2.04, moved to reconsider the vote taken on the motion, seconded by Mr. Shanor. Mr. Esquibel explained following adoption of the resolution, the need to address city-wide curb and gutter concerns and funding options were discussed. Motion to reconsider carried. Voting "yes" – Mr. Case, Mr. Cook, Mr. Esquibel, Mr. Luna, Dr. Rinne and Mr. Shanor. Voting "no" – Mr. Laybourn, Mayor Orr, Mr. Roybal and Mr. White. Comments were made in support of addressing city-wide curb and gutter repairs, looking into funding mechanisms for such and how the resolution only pertains to a specific area of town. Amy Allen, City Engineer, advised the 1% Construction Department is reviewing community curb and gutter concerns and working on a proactive approach for addressing them. Further comments were made in support of the original resolution as the intention is to establish a downtown restaurant district and bringing forth resolutions for additional restaurant districts. Motion failed. Voting "yes" – Mr. Laybourn, Mayor Orr, Mr. Roybal and Mr. White. Voting "no" – Mr. Case, Mr. Cook, Mr. Esquibel, Mr. Luna, Dr. Rinne and Mr. Shanor.

Mayor Orr provided information on the Cheyenne Day of Giving to be held on May 10, 2019 and the Civic Center Commons ribbon cutting ceremony and Cheyenne Day of Service to be held on May 11, 2019 at 9:00 a.m.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:38 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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